

TENTATIVE RULING

Case: **Whaley v. Kamilos**
 Case No. CV2023-0485

Hearing Date: **February 5, 2026** **Department Eleven** **9:00 a.m.**

Plaintiffs Gerald J. McCall, Laura L. McCall, Nathan S. Whaley, and Aimee W. Whaley as co-trustees of the Nathan S. & Aimee W. Whaley Living Trust dated January 21, 2017's unopposed motions to compel documents pursuant to deposition subpoena for production of business records to Mountain House College Park Investors, LLC ("MHCPI") and Mountain House Investors, LLC ("MHI") are **GRANTED**. (Code Civ. Proc., §§ 1987.1, 2025.480; Lambert decls., ¶¶ 2-9, Exhibits A-G.)

Plaintiffs' requests for sanctions are **DENIED**. (Code Civ. Proc., §§ 2025.450, 2023.010.) In their notices of motion, plaintiffs state that they seek sanctions against MHCPI and MHI if they oppose the motions. (See Notices of Motion, p. 2; see also Code Civ. Proc., § 2023.040.) MHCPI and MHI did not oppose the motions.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.